

Complaint Report (CCRB)

CCRB Case No :	201704064	C/V Report Date :	Fri, 05/12/2017
Complaint Type :	CCRB	Investigator :	Daniel Giansante
Complaint Made At :	IAB	Ref. No	17-18768
Received Date (CCRB) :	Tue, 05/23/2017 12:45 PM	Mode :	Phone
Incident Date(s) :	Fri, 05/12/2017 12:30 AM		
Place of Occurrence:	[REDACTED]	Precinct:	52
Location :	Street/highway	Boro:	Bronx
Reason for Initial Contact :	PD suspected C/V of violation/crime - auto		
Charges:	Arrest - assault (against a PO)		

Complainant/Victim Details

Name:	[REDACTED]	Type:	Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]
Injury Details:	<u>Type of Injury</u>	<u>Description</u>	
	Internal Injury	Hematoma behind left eyeball	
Injury Details:	<u>Type of Injury</u>	<u>Description</u>	
	Swelling	Marked swelling about left eye	

Officer(s) Named in Complaint

Rank	Officer	S/W Officer	Tax No	Race	Cmd	Allegations/Board Dispositions
	An officer	Subject Officer	[REDACTED]		052	Radio as club - (F) Unfounded
	An officer	Subject Officer	[REDACTED]		052	Other - (F) Unfounded
POM	Brandon Gembecki	Subject Officer	[REDACTED]	White	052	Chokehold - (F) Unfounded
POM	Brandon Gembecki	Subject Officer	[REDACTED]	White	052	Physical force - (punched/kicked/knead) - (F) Exonerated
POM	Brandon Gembecki	Subject Officer	[REDACTED]	White	052	Other - (F) Unfounded
POM	Brandon Gembecki	Subject Officer	[REDACTED]	White	052	Vehicle stop - (A) Unsubstantiated

POM	Brandon Gembecki	Subject Officer	[REDACTED]	White	052	Frisk - (A) Unsubstantiated
POM	Adam Landesberg	Subject Officer	[REDACTED]	White	052	Vehicle stop - (A) Unsubstantiated
POM	Juan Gomez	Subject Officer	[REDACTED]	Hispanic	052	Physical force - (punched/kicked/kneed) - (F) Exonerated
POM	Juan Gomez	Subject Officer	[REDACTED]	Hispanic	052	Vehicle stop - (A) Unsubstantiated
	Officers	Subject Officer	[REDACTED]		052	Physical force - (punched/kicked/kneed) - (F) Exonerated

Initial Complaint Narrative

ON MAY 12, 2017 AT 0215 HOURS, LT. MALONEY (# [REDACTED]) CALLED IAB AND REPORTED THE FOLLOWING: PO GEMBECKI [REDACTED] LANDESBERG [REDACTED] AND GOMEZ [REDACTED] PERFORMED A CAR STOP AT [REDACTED] IN THE BRONX AT APPROXIMATELY 12:30AM, AND ENCOUNTERED MR. [REDACTED] (DRIVER), AND [REDACTED] (PASSENGER) IN THE VEHICLE. THE OFFICERS THEN OBSERVED ONE LOOSE PILL OF OXYCONTIN ON THE PASSENGER SIDE FLOOR. PO GEMBECKI TOOK THE DRIVER OUT OF THE CAR TO PLACE HIM IN CUSTODY AND A FIGHT ENSUED. MR. [REDACTED] THEN BITES PO GEMBECKI ON THE LEFT BICEP. OFFICERS THEN BRING MR. [REDACTED] TO THE GROUND, AND USED FORCE TO GET HIM IN TO CUSTODY. THE PASSENGER, MR. [REDACTED] OFFERED NO RESISTANCE, AND WAS PLACED INTO CUSTODY. APPROXIMATELY 60-70 PERCOCETS WERE RECOVERED FROM MR. [REDACTED]'S PERSON. LT. MALONEY STATES THAT MR. [REDACTED] ALSO ADMITTED TO USING THEM THROUGHOUT THE NIGHT, HAVING TAKEN TWO PRIOR TO THE ENCOUNTER WITH POLICE. BOTH PO GEMBECKI AND MR. [REDACTED] WERE REMOVED TO [REDACTED] HOSPITAL, AND ARE BEING TREATED BY [REDACTED]. PO GEMBECKI HAS A BITE TO HIS RIGHT BICEP AS WELL AS A PULLED LIGAMENT IN HIS RIGHT SHOULDER.

Witness

Name of Witness:

Address:

Contacts:

Gender :

Date of Birth :

Ethnicity: